

- (b) To ensure development does not impact on the health of a tree on the site or adjoining properties or street trees.
- (c) To ensure all works to trees are conducted in accordance with the relevant Australian Standards.
- (d) To increase the level of canopy cover by minimising the loss of vegetation and trees.

3.1.1 Exempt Vegetation

The following species of trees are declared weeds under the Biosecurity Act 2015 as prescribed for the Waverley LGA and can be removed without a permit or development consent. However, Council must be notified a minimum of seven days prior to removing any such trees.

Botanic Name	Common Name
<i>Ailanthus altissima</i>	Tree of Heaven,
<i>Celtis sinensis</i>	Hackberry
<i>Citrus spp</i>	Citrus
<i>Ligustrum sinense</i>	Narrow leaved Privet
<i>Ligustrum lucidum</i>	Broad leaved Privet
<i>Nerium oleander</i>	Oleander
<i>Olea europea var. africana</i>	Wild or African Olive
<i>Salix spp</i>	Willows
<i>Schefflera actinophyll</i>	Umbrella Tree
<i>Strelitzia nicolai</i>	Giant Bird of Paradise
<i>Syagrus romanzoffianum</i>	Cocos Palm
<i>Toxicodendron spp</i>	Rhus Tree

Despite any other provisions in this DCP, clearing of vegetation is exempt from the requirement to obtain a Vegetation Clearing Permit in the following circumstances:

- (i) Pruning of a hedge (hedge being defined as a group of two or more trees whether planted in the ground or otherwise, so as to form a hedge and rise to a height of at least 2.5 metres above existing ground level) by no more than 20 per cent of its height and width in any 12-month period;
- (ii) Pruning of a tree with a maximum height of below 5m.
- (iii) Removal of dead branches, palm fronds or palm fruit;
- (iv) Pruning of branches from electricity wires as required by the *Electricity Supply Act 1995*;
- (v) If Council is satisfied that there is a risk to human life or property, e.g. in response to severe storm damage or sudden branch failure. Evidence of the tree's condition (e.g. arborist or SES report) must be produced at Council's request. Replacement native trees must be planted if tree/s are removed;
- (vi) Works carried out by state or federal government departments or authorities under current legislative requirement; or
- (vii) If Council is satisfied that the vegetation is dying or dead and is not required as the habitat of native animals.